

		On 10/16/23, Plaintiff voluntarily dismissed Chaparral with prejudice. Therefore, the motion appears to be moot. Moreover, to the extent Plaintiff still intends to conduct a deposition of Chaparral's person most qualified, Plaintiff must now serve a subpoena for deposition testimony to Chaparral because Chaparral is no longer a party to the action. (Code Civ. Proc. § 2025.280(a)-(b) [deposition notice effective to require party to appear for deposition, but testimony of nonparty deponent requires deposition subpoena].)
9	30-2022-01262550 Portfolioiq vs. Tradability, LLC	Motion for Leave to Intervene The Motion to Intervene by Proposed Plaintiffs in Intervention Tracy Kinder and Roxanna Guinan (Movants) is DENIED. Movants' Request for Judicial Notice of the complaint in <i>Kinder v. Gallant</i>, OCSC No. 2022-01282519 (<i>Kinder</i> case) is granted. Defendants Diallo and Tradability's Request for Judicial Notice of the Complaint, Cross-Complaint, and 5/12/23 Order in the <i>Kinder</i> case is also granted. Code of Civil Procedure section 387 provides for mandatory and permissive intervention. Section 387, subdivision (d)(1) states the requirements for mandatory intervention: “(d)(1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.” Section 387, subdivision (d)(2) provides for permissive intervention: “(2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.”

	Here, Movants contend intervention is appropriate because they are former employees of nominal Defendant Pomegranate Holdings, LLC (Pomegranate) who received shares and certain voting rights as part of their compensation. Movants contend they have a shared interest in this case, specifically the issues of control, elections, and voting as to Pomegranate, as well as the determination of ownership of units of Pomegranate. They have filed a proposed complaint in intervention with their motion, which alleges claims that are similar to Movants' claims in the <i>Kinder</i> case. Movants state they would dismiss their duplicative claims in the <i>Kinder</i> case if this motion is granted. (Motion, p. 10 fn. 4.) Movants contend intervention is necessary to avoid inconsistent outcomes because they assert similar claims in the <i>Kinder</i> case. First, Movants have not shown that intervention is mandatory under section 387(d)(1). They do not contend any provision of law confers an unconditional right to intervene. And they have not shown they are so situated that the disposition of this case will impair or impede their ability to protect their interests related to control of Pomegranate. Specifically, because Movants are already pursuing such claims in the <i>Kinder</i> lawsuit, denial of intervention will not preclude them from asserting their rights regarding these issues. Moreover, Movants and Plaintiff PortfolioIQ appear to take substantially similar positions regarding the issues in this case such that their interests are being represented in this case as to any claims not already being pursued by Movants in the <i>Kinder</i> case. Permissive intervention under section 387(d)(2) is also not appropriate. Although Movants have shown they have an interest in this matter regarding the issue of control of Pomegranate, allowing Movants to intervene could result in inconsistent rulings and allow Movants to avoid the effect of rulings which have occurred in the <i>Kinder</i> lawsuit, including an order granting Defendant Gallant's motion to quash Movants' claims against him and orders related to an anti-SLAPP motion. The intervention statute is not intended to allow proposed intervenors to engage in forum shopping by intervening in a lawsuit to avoid the effect of adverse rulings in another pending case. Moreover, Movants have not explained why their concerns about inconsistent results cannot be addressed through a request to relate or consolidate this case with the <i>Kinder</i> lawsuit.
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		California Rules of Court, Rule 3.300 provides, “(a) Definition of ‘related case’ A pending civil case is related to another pending civil case, or to a civil case that was dismissed with or without prejudice, or to a civil case that was disposed of by judgment, if the cases: (1) Involve the same parties and are based on the same or similar claims; (2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact; (3) Involve claims against, title to, possession of, or damages to the same property; or (4) Are likely for other reasons to require substantial duplication of judicial resources if heard by different judges.” If any party believes this case and the <i>Kinder</i> case involve related issues as defined under Rule 3.300(a), they shall promptly file notices of related case as required under Rule 3.300(b), which states, “Whenever a party in a civil action knows or learns that the action or proceeding is related to another action or proceeding pending, dismissed, or disposed of by judgment in any state or federal court in California, the party must serve and file a Notice of Related Case.” Any remaining concerns about inconsistent results can be raised through a motion to consolidate this case with the <i>Kinder</i> case, if appropriate, under Rule 3.350 and Code of Civil Procedure section 1048, which states, “(a) When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.”
10	30-2022-01274579 Parker vs. Lee	Motion – Other (to Modify Preliminary Injunction) Plaintiff Ana Christina Parker’s (Plaintiff) Motion to Modify Preliminary Injunction (Motion) is DENIED. On 11-29-22, the Court entered the following preliminary injunction in this action pursuant to Plaintiff’s motion: “Defendants Lee, Nguyen, and their agents, servants, employees, and representatives, and all persons acting in concert with them, are enjoined and restrained during the pendency of this action from engaging in, committing, or